

STATE OF NEW YORK

2321--A

Cal. No. 84

2025-2026 Regular Sessions

IN ASSEMBLY

January 16, 2025

Introduced by M. of A. McDONALD, SIMON, KELLES, McMAHON, SIMONE, BURROUGHS, CRUZ, REYES, SAYEGH, COLTON, OTIS, STECK, LEE -- read once and referred to the Committee on Governmental Operations -- ordered to a third reading -- passed by Assembly and delivered to the Senate, recalled from the Senate, vote reconsidered, bill amended, ordered reprinted, retaining its place on the special order of third reading

AN ACT to amend the public officers law, in relation to requiring agencies to report information about FOIL inquiries to the committee on open government

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 90 of the public officers law is renumbered section
2 90-a and a new section 90 is added to read as follows:

3 § 90. FOIL request reporting. 1. All agencies that perform govern-
4 mental or proprietary functions for the state subject to this article
5 shall, for each year in which they received or have pending a request
6 for records under this article, submit to the committee on open govern-
7 ment their log of all such freedom of information law requests. For the
8 purposes of this section, pending shall mean requests that were open at
9 any point during the twelve-month period, including those first submit-
10 ted in prior years. The freedom of information law request logs shall:

11 (a) cover a twelve-month range of dates as prescribed by the committee
12 on open government and shall include data regarding all requests
13 received or pending during that range of dates;

14 (b) be submitted on a schedule prescribed by the committee on open
15 government;

16 (c) be in a machine-readable, tabular spreadsheet format prescribed by
17 the committee on open government, including but not limited to the order
18 of the data fields included;

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 (d) be submitted in a method as prescribed by the committee on open
2 government, such as by electronic mail, web form, web portal, or other
3 method as prescribed by the committee;

4 (e) include data prescribed and defined by the committee on open
5 government, but at the minimum including:

6 (i) the name of the requestor, or an indication that the requestor is
7 a "private individual" if the request did not include an affiliation
8 and/or employer on whose behalf the request was made;

9 (ii) the affiliation and/or the employer of the requestor, if applica-
10 ble;

11 (iii) the subject or subjects of the request;

12 (iv) the date of receipt of the request;

13 (v) the date of acknowledgment by the agency of the request;

14 (vi) the date of the expected response time as provided in the
15 acknowledgment;

16 (vii) the number of extensions of time to respond to date;

17 (viii) the date of the final response or of the closure of the
18 request, if applicable;

19 (ix) whether the request was granted in whole; granted in part and
20 denied in part; or denied;

21 (x) if the request was denied in whole or in part, a list of
22 exemptions cited in the final response, if applicable;

23 (xi) if the request was denied in whole or in part, whether the agency
24 determined there were no responsive records;

25 (xii) the date an appeal of the final response was filed, or whether
26 no appeal was filed;

27 (xiii) the status of any appeals, including whether the appeal was:

28 (A) not filed;

29 (B) filed and pending;

30 (C) filed and granted in whole;

31 (D) filed and granted in part and denied in part; or

32 (E) filed and denied;

33 (xiv) a list of exemptions cited in an appeal denial, if applicable;

34 (xv) the amount, in dollars, of total fees collected from requestor;

35 (xvi) how many documents were produced;

36 (xvii) how many pages were produced;

37 (xviii) whether any of the produced documents were redacted;

38 (xix) whether the request was subject to a proceeding filed under
39 article seventy-eight of the civil practice law and rules, and if so:

40 (A) the result, including judgment for petitioner; judgment for
41 respondent; or settlement;

42 (B) the date of the final judgment, whether it be a final judgment or
43 stipulation of dismissal pursuant to a settlement;

44 (C) the amount of attorney fees assessed by the court to be paid by
45 the agency, if any;

46 (D) the date of any appeal of the article seventy-eight judgment; and

47 (E) the result of any appeal of an article seventy-eight judgment; and

48 (f) be published on the agency's website.

49 2. By January first of each year, the committee on open government
50 shall publish, on one webpage, all freedom of information law request
51 logs it receives, in a machine-readable format such as a spreadsheet or
52 comma separated value file, in addition to any other format it shall
53 determine, and such logs and submissions shall be preserved on such
54 webpage. The committee and the office of information technology services
55 shall additionally publish and preserve row-level data of such logs and
56 submissions on data.ny.gov or such other successor website maintained

1 by, or on behalf of, the state, as deemed appropriate by the office of
2 information technology services under executive order 95 of 2013, or any
3 successor agency or order.

4 3. The committee on open government shall at a minimum provide, in its
5 annual report required by section eighty-nine of this article, the total
6 number of FOIL logs submitted by agencies pursuant to this section, and
7 the committee shall further be authorized to analyze the data in the
8 freedom of information law request logs and use such data and analyses
9 thereof in such annual report or other reports or analyses.

10 § 2. This act shall take effect on the ninetieth day after it shall
11 have become a law.